

(iii) Lack of competence

A decision taken by a department that is not competent amounts to a substantial procedural violation justifying the reimbursement of the appeal fee (see T 2411/10 where the Receiving Section, and not the examining division, was competent to decide). A substantial procedural violation is deemed to have occurred if the decision has been taken by a formalities officer who was not competent to decide (J 10/82, OJ 1983, 94; T 114/82, OJ 1983, 323; T 790/93; T 749/02).

(iv) Decision not approved by all members

In T 225/96 the board ruled that to issue the parties with a draft decision not approved by all opposition division members present at the oral proceedings was a substantial procedural violation.

b) Content of decision

(i) Written decision deviates from oral decision

In T 425/97 the board decided that any substantive deviation of the decision notified in writing from that given orally at the oral proceedings amounted to a procedural violation. T 1365/09 held that a contradiction between the decision rendered at the oral proceedings and the written decision as sent to the parties contravened R. 111(1) EPC and amounted to a substantial procedural violation.

In T 1455/14 the board found that there was no basis in the EPC for the opposition division's use of its discretion to correct an obvious error after the proceedings had been closed, for which there was no corresponding request according to R. 139 EPC on the part of the patent proprietor. This resulted in a threefold procedural violation. The written decision was based on a text amended by the opposition division which was (1) not submitted by the patent proprietor, (2) on which the opponent had had no opportunity to comment and (3) which did not correspond to the decision announced at the end of the oral proceedings.

(ii) Decision deviates from previous communication

In T 2006/08 the board found that although the opposition division had expressed an opinion on the issue of sufficiency of disclosure in favour of the patentee in two communications, this opinion was clearly labelled as being preliminary and non-binding. The board also held that a preliminary, provisional opinion did not prevent a party from making its complete case. It was the responsibility of a party to ensure that the facts and evidence filed were not only unequivocally clear but also as complete as possible. If a party decided to retain or not to file further evidence to support its case, it would run the risk that an adverse decision might be issued based on the available (incomplete) evidence on file. The board rejected the request for reimbursement of the appeal fee.

In T 980/06, the contested decision had regarded a claim as patentable, whereas in the sole previous communication the examining division had taken a negative view. In such circumstances, a second communication would have been useful. However, its absence was not a "substantial" procedural violation.

(iii) Failure to deal with objection

In T 740/94 the board held that the failure of the opposition division to deal with an objection under Art. 100(b) EPC 1973 against an amended claim in its decision to maintain the patent in amended form clearly constituted a substantial procedural violation (see G 10/91, OJ 1993, 420, point 19 of the Reasons).

(iv) Third party observations not mentioned in decision

In T 283/02 the opposition division had duly forwarded the observations by third parties to the patentee, who had made no comment. The failure of the opposition division to mention these observations in its decision did not constitute a substantial procedural violation, even though a mention would have been desirable.

(v) Board decision containing similar facts not followed

In T 494/07 the board held that the strict legal obligation to follow the ratio decidendi of a decision of a board (Art. 111(2) EPC 1973) was limited to the same application and the same instance whose decision has been contested in the appeal, but did not extend to other applications (or even to other instances in the same application). This was so even if the subject-matter of the two applications was highly similar (see J 27/94, OJ 1995, 831).

(vi) Remarks on substantive matters in decision on admissibility

Remarks on substantive matters in a decision rejecting the opposition as inadmissible have no legal effect. Even if misleading, they do not represent a substantial procedural violation justifying the reimbursement of the appeal fee (T 925/91, OJ 1995, 469; see also T 1051/92).

(vii) Applying legal provision not yet in force

In T 991/02 an opposition division decision was set aside for lack of a legal basis. The opposition division's application of a new rule, not yet in force in this case, constituted a substantial procedural violation.

c) Requests

(i) Obligation to reason refusal of request

According to T 961/00, it is a party's procedural right to file and maintain such requests as are regarded by the competent organ as unallowable or even inadmissible. If a party does so, then the competent organ has to give a decision on it (see T 1105/96, OJ 1998, 249),

but cannot simply disregard it and deal with the case as if the request did not exist. This would constitute a substantial procedural violation (see also T 234/86, T 484/88, T 155/88).

In T 1157/01 the decision under appeal had omitted to give reasons for the refusal of the higher ranking requests still pending before the examining division; this amounted to a substantial procedural violation (see also T 488/94; for opposition procedure see T 234/86, OJ 1989, 79).

In T 1435/13 the board held that because claim 1 of the main request did not fulfil the requirements of the EPC, the main request could not be allowed. This conclusion was unaffected by the fact that independent claim 9 complied with the requirements of the EPC or that it might have been desirable that the decision under appeal included reasoning with respect to all independent claims (and thus also claim 9). As the examining division had decided on all requests before it, the board did not consider that a substantial procedural violation had occurred.

(ii) Auxiliary requests and order of requests

In J 23/96 the board held that an auxiliary request was filed in case the main request was refused; the auxiliary request then took its place and had to be dealt with in the same decision. The examining division's failure to deal with the auxiliary request for re-establishment in the decision under R. 69(2) EPC 1973 (R. 112(2) EPC) amounted to a substantial procedural violation.

In T 320/99 (referring to T 1105/96) the examining division considered the auxiliary request allowable, but nonetheless issued a decision refusing the main request and thus the application. The correct course of action would have been to issue a communication under R. 51(4) EPC 1973 based on the auxiliary request. The issue of the decision was a substantial procedural violation which justified the reimbursement of the appeal fee.

In T 883/07 the board held that the examining division's failure to examine the auxiliary requests independently of the main request amounted to a substantial procedural violation within the meaning of R. 67 EPC 1973. Claim requests do not coexist in parallel, but form a stack which has to be considered – each one independently of all the others – in the sequence indicated by the applicant or patent proprietor (see Guidelines C-VI, 4.1 and E-X, 3 – June 2005 version).

In T 1758/15 the opposition division had concluded that four attempts to overcome a single issue were enough. The decision to not admit a further request was taken without having identified any signs of procedural abuse and without knowing the content of the further request. The board concluded that the opposition division had not exercised its discretion under R. 116(2) and Art. 114(2) EPC in a reasonable way, which constituted a substantial procedural violation. However, because the appeal was not deemed allowable, the appeal fee was not reimbursed. In any case, during second oral proceedings the appellant withdrew its request for reimbursement.

(iii) Requests not taken into account because of delay within EPO

In T 231/85 (OJ 1989, 74) the board held that failure to take the applicant's requests into account as a result of a delay within the EPO (in this case six weeks) constituted a substantial procedural violation (see also T 598/88). In T 205/89, owing to a mistake by a formalities officer, a request for an extension of the time for submitting comments in opposition proceedings never reached the opposition division, which therefore took its decision without considering the argument presented in the subsequently filed submission. The board considered that the failure by the formalities section amounted to a substantial procedural violation on its part and regarded the reimbursement of the appeal fee to thus be equitable.

(iv) Requests not filed by correct party

In T 1178/04 a procedural violation within the meaning of R. 67 EPC 1973 had occurred, in that the requests relating to the patentability of the claimed invention were made in the oral proceedings before the opposition division by a party to whom the opposition had been purportedly but invalidly transferred. These requests were inadmissible.

d) Amendments

In T 246/08 the board stated that a refusal to allow amendments made in advance of any amendment being submitted could not be a reasonable exercise of discretion pursuant to R. 137(3) EPC and was ipso facto a substantial procedural violation (see also T 872/90).

In T 121/06 the board held that issuing a communication under R. 51(4) EPC 1973 in which amendments were proposed which the applicant could not reasonably be expected to accept without further discussion constituted a substantial procedural violation.

In T 901/10 the appellant implied that the way in which the examining division had applied R. 137(3) and (4) EPC amounted to a substantial procedural violation. After the application had entered the European phase, no examination report was issued for six years. Nevertheless, the board held that such delays, undesirable as they may be, do not oblige the examining division to be more lenient under R. 137(3) EPC. The appeal fee was not reimbursed.

In T 1354/13 the board held that an applicant who presents extensively revised claims at a late stage of the proceedings has to be prepared for the possibility that the admissibility of these claims will be considered under Art. 123 and R. 137 EPC. The request for reimbursement of the appeal fee was refused.

e) Signature on decision and minutes

In T 390/86 the board held that the written reasons for a decision delivered during oral proceedings could only be signed by members of the deciding body who had taken part in the oral proceedings (see also T 563/11). In T 2076/11 the appeal fee was reimbursed as the written decision and the minutes of the oral proceedings were signed by the director

of the organisational unit. See also chapter III.B.2.8. "Changes in the composition of the opposition division after oral proceedings".

In T 211/05, the board took the view that for a person to take part in a decision when not entitled to do so (here the director signing the decision instead of the second examiner), resulting in failure to comply with the principle that the power to examine a patent application must not only be exercised personally but also be seen – by both the applicant and the public – to be exercised personally, constituted a substantial procedural violation, in particular because it deprived the applicant of his right to be heard by the full examining division (see also T 1033/16).

f) Composition of opposition division

(i) Under Article 19(2) EPC

The board of appeal ordered reimbursement of the appeal fee in T 382/92 because the composition of the opposition division had not complied with the requirements of Art. 19(2) EPC 1973. The chairman and one member of the opposition division had already been members of the examining division which had decided on the application leading to the patent concerned (see also T 939/91, T 960/94, T 825/08, T 1349/10, T 1700/10, T 79/12, T 1788/14). See also chapter III.K.1.3.3.

(ii) During opposition proceedings

In T 2175/16 the person who signed the decision of the opposition division as first examiner had not been the first examiner at the oral proceedings. Thus, a change in the composition of the opposition division had taken place between holding the oral proceedings, at the end of which a decision was given orally, and issuing the written decision. The board considered the change of composition to be a substantial procedural violation, which justified that the appeal fee be reimbursed (see also chapter III.K.1.3.2).

11.6.12 Partiality

In T 900/02 the board stated that a suspicion of partiality must inevitably arise if a member of an opposition division, or any other first instance body, first solicits and then accepts employment with a firm in which a partner or other employee is conducting a case pending before that member, even if it occurred after oral proceedings had been held. This amounted to a substantial procedural violation.

In T 585/06 the appellant (opponent) considered that the presence of a former member of the boards of appeal, as a consultant of the patent proprietor, at the oral proceedings before the opposition division had led to partiality of the opposition division. The former member did not address the opposition division, not even under the control of the representative of the respondent. This amounted to an important difference to the facts underlying case G 2/94. The authorised representative was absolutely free whether to accept the hints whispered by the former member, who did not make any intervention of his own motion. The appellant's representative accepted at the beginning of the oral